THE RAJIV GANDHI INSTITUTE OF PETROLEUM TECHNOLOGY ACT, 2007

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THE RAJIV GANDHI INSTITUTE OF PETROLEUM TECHNOLOGY ACT, 2007

ACT NO. 54 OF 2007

[20*th December*, 2007.]

An Act to declare the institution known as the Rajiv Gandhi Institute of Petroleum Technology to be an institution of national importance and to provide for its incorporation and for matters connected therewith.

BE it enacted by Parliament in the Fifty-eighth Year of the Republic of India as follows:—

CHAPTER 1

PRELIMINARY

1. Short title and commencement.—(*1*) This Act may be called the Rajiv Gandhi Institute of Petroleum Technology Act, 2007.

(*2*) It shall come into force on such date[1] as the Central Government may, by notification in the Official Gazette, appoint, and different dates may be appointed for different provisions of this Act.

2. Declaration of Rajiv Gandhi Institute of Petroleum Technology as an institution of national importance.—Whereas the objects of the institution known as the Rajiv Gandhi Institute of Petroleum Technology, Jais, District— Rae Bareli, Uttar Pradesh are such as to make the institution one of national importance, it is hereby declared that the institution known as the Rajiv Gandhi Institute of Petroleum Technology is an institution of national importance.

3. Definitions.—In this Act, unless the context otherwise requires,—

(*a*) "appointed day" means the date appointed under sub-section (*2*) of section (*1*) for coming into force of this Act;

(*b*) "Board" means the Board of Governors of the Institute constituted under sub-section (*1*) of section 5;

(*c*) "Chairperson" means the Chairperson of the General Council;

(*d*) "Director" means the Director of the Institute appointed under section 20;

(*e*) "fund" means the fund of the Institute to be maintained under section 24;

(*f*) "General Council" means the General Council established under sub-section (*1*) of section 15;

(*g*) "Institute" means the Rajiv Gandhi Institute of Petroleum Technology incorporated under section 4;

(*h*) "President" means the President of the Board appointed under clause (*a*) of sub-section (*1*) of section 5;

(*i*) "Registrar" means the Registrar of the Institute referred to in section 21;

(*j*) "Senate" means the Senate of the Institute referred to in section 17;

1. 1st June, 2008, *vide* notification No. S.O. 1244(E), dated 28th May, 2008, *see* Gazette of India, Extraordinary, Part II, sec. 3(ii).

(*k*) "Society" means the Rajiv Gandhi Institute of Petroleum Technology Society, Jais District—Rae Bareli, Uttar Pradesh registered under the Societies Registration Act, 1860 (21 of 1860); and

(*l*) "Statutes" and "Ordinances" mean, respectively, the Statutes and Ordinances of the Institute made under this Act.

CHAPTER II

THE INSTITUTE

4. Incorporation of Institute.—The Rajiv Gandhi Institute of Petroleum Technology shall be a body corporate having perpetual succession and a common seal with power, subject to the provisions of this Act, to acquire, hold and dispose of property and to contract, and shall, by that name, sue and be sued.

5. Constitution of Board of Governors.—(*1*) With effect from such date as the Central Government may, by notification in the Official Gazette, appoint, there shall be constituted by the Central Government for the purposes of this Act, a Board to be known as the Board of Governors consisting of the following members, namely:—

(*a*) the President to be appointed by the Central Government in such manner as may be provided by the Statutes:

Provided that the first President shall be appointed by the Central Government on such terms and conditions as it deems fit, for a period not exceeding six months from the date the first Statutes comes into force.

(*b*) the Director of the Institute, *ex officio*;

(*c*) two persons from the Board of Directors of the promoting companies to be nominated by the Central Government.

Explanation.—For the purposes of this clause, promoting companies mean those companies contributing to the endowment fund referred to in section 25;

(*d*) one Professor of the Indian Institute of Technology, Kanpur to be nominated by the Director of that Institute;

(*e*) five eminent experts in the field of petroleum technology covering the entire hydrocarbon value chain having specialised knowledge or operational experience in respect of education, research, engineering and technology to be nominated by the General Council, in consultation with the Director of the Institute;

(*f*) two Professors of the Institute to be nominated by the Senate of the Institute; and

(*g*) one representative of the graduates of the Institute to be nominated by the Executive Committee of the Alumni Association.

(*2*) The Registrar of the Institute shall act as the Secretary of the Board.

(*3*) The Board shall ordinarily meet four times during a calendar year.

6. Term of office of, vacancies among, and allowances payable to, members of Board.—(*1*) Save as otherwise provided in this section, the term of office of the President or any other member of the Board, other than *ex officio* members shall be three years from the date of his appointment or nomination thereto.

(*2*) An *ex officio* member shall cease to be a member of the Board as soon as he vacates the office by virtue of which he is a member of the Board.

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(*3*) The term of a member nominated to fill a casual vacancy shall continue for the remainder of the term of the member in whose place he has been nominated.

(*4*) Notwithstanding anything contained in this section, an outgoing member shall, unless the Central Government otherwise directs, continue in office until another person is nominated as a member in his place.

(*5*) The members of the Board shall be entitled to such allowances, if any, from the Institute, as may be provided for in the Statutes, but no member other than the member referred to in clause (*f*) of section 5 shall be entitled to any salary.

7. Vesting of properties.—On and from the appointed day and subject to the other provisions of this Act, all properties which had vested in the Society immediately before that day, shall, on and from that day, vest in the Institute.

8. Effect of incorporation of Institute.—On and from the appointed day,—

(*a*) any reference to the Society in any contract or other instrument shall be deemed as a reference to the Institute;

(*b*) all the rights and liabilities of the Society shall be transferred to, and be the rights and liabilities of, the Institute; and

(*c*) every person employed by the Society immediately before the appointed day shall hold office or service in the Institute by the same tenure, at the same remuneration and upon the same terms and conditions and with the same rights and privileges as to pension, leave, gratuity, provident fund and other matters as he would have held the same if this Act had not been passed, and shall continue to be so unless and until his employment is terminated or until such tenure, remuneration and terms and conditions are duly altered by the Statutes:

Provided that if the alteration so made is not acceptable to such employee, his employment may be terminated by the Institute in accordance with the terms of the contract with the employee or, if no provision is made therein in this behalf, on payment to him by the Institute of compensation equivalent to three months' remuneration in the case of permanent employees and one month's remuneration in the case of other employees.

9. Functions of Institute.—The Institute shall perform the following functions, namely:—

(*i*) nurture and promote quality and excellence in education and research in the area of petroleum and hydrocarbons;

(*ii*) provide for programmes and courses of instruction and research leading to the award of the Bachelors, Masters and Doctoral degrees in engineering and technology, management, sciences and arts in the area of petroleum and hydrocarbons;

(*iii*) grant, subject to such conditions as the Institute may determine, degrees, diplomas, certificates or other academic distinctions or titles at various academic levels to candidates who have attained the prescribed standard of proficiency as judged on the basis of examination or on any other basis of testing and evaluation and to withdraw any such degrees, diplomas, certificates or other academic distinctions or titles for good and sufficient reasons;

(*iv*) confer honorary degrees or other distinctions and to institute and award fellowships, scholarships, exhibitions, prizes and medals;

(*v*) lay down standards of admission to the Institute through an examination or any other method of testing and evaluation;

(*vi*) fix, demand and receive fees and other charges;

(*vii*) manage the content, quality, design and continuous evaluation of its academic and research programmes in a manner that earns accreditation of an international stature;

(*viii*) promote research and development for the benefit of oil, gas and petrochemical industry through the integration of teaching and research;

(*ix*) foster close educational and research interaction through networking with national, regional and international players in the oil, gas and petrochemical industry;

(*x*) co-operate with educational and research institutions in any part of the world having objects wholly or partly similar to those of the Institute by exchange of teachers and scholars, conduct of joint research, undertaking sponsored research and consultancy projects, etc;

(*xi*) organise national and international symposia, seminars and conferences in the area of petroleum and hydrocarbons;

(*xii*) establish, maintain and manage halls, residences and hostels for students;

(*xiii*) create academic, administrative, technical and other posts and to make appointments thereto;

(*xiv*) lay down conditions of service including a code of conduct for teachers and other categories of employees;

(*xv*) supervise, control and regulate the discipline of all categories of employees of the Institute and to make arrangements for promoting their health and general welfare;

(*xvi*) supervise and regulate the discipline of students and to make arrangements for promoting their health, general welfare and cultural and corporate life;

(*xvii*) frame Statutes and Ordinances and to alter, modify or rescind the same;

(*xviii*) deal with any property belonging to or vested in the Institute in such manner as the Institute may deem fit for advancing its objects;

(*xix*) receive gifts, grants, donations or benefactions from the Central and State Governments and to receive bequests, donations, grants and transfers of movable or immovable properties from testators, donors, transferors, alumni, industry or any other person;

(*xx*) borrow money for the purposes of the Institute with or without security of the property of the Institute;

(*xxi*) integrate new technology in the classroom to encourage student-centric learning strategies and the development of an attitude for learning;

(*xxii*) develop and maintain an information resource centre of print and non-print knowledge resources in the field of petroleum sector covering the entire hydrocarbon value chain as well as other related areas of science and technology;

(*xxiii*) provide for further education to the working professionals and other employees of the Institute in the advanced areas of technology relating to oil, gas and complete hydrocarbon value chain; and

(*xxiv*) do all things, not specifically covered above, as may be necessary, incidental or conducive to the attainment of all or any of the objects of the Institute.

10. Powers of Board.—(*1*) Subject to the provisions of this Act, the Board shall be responsible for the general superintendence, direction and control of the affairs of the Institute and shall exercise all the powers not otherwise provided for by this Act, the Statutes and the Ordinances, and shall have the power to review the acts of the Senate.

(*2*) Without prejudice to the provisions of sub-section (*1*), the Board shall—

(*a*) take decisions on questions of policy relating to the administration and working of the Institute;

(*b*) lay down policy regarding the duration of the courses, nomenclature of the degrees and other distinctions to be conferred by the Institute;

(*c*) institute courses of study and to lay down standards of proficiency and other academic distinctions in respect of the courses offered by the Institute;

(*d*) lay down policy regarding the cadre structure, qualification, the method of recruitment and conditions of service of the teaching and research faculty as well as other employees of the Institute;

(*e*) guide resource mobilisation of the Institute and to lay down policies for investment;

(*f*) consider and approve proposals for taking loans for purposes of the Institute with or without security of the property of the Institute;

(*g*) frame Statutes and to alter, modify or rescind the same;

(*h*) consider and pass resolutions on the annual report, the annual accounts and the budget estimates of the Institute for the next financial year as it thinks fit together with a statement of its development plans; and

(*i*) do all such things as may be necessary, incidental or conducive to the attainment of all or any of the aforesaid powers.

(*3*) The Board shall have the power to appoint such committees as it considers necessary for the exercise of its powers and the performance of its duties under this Act.

(*4*) The Board shall have the power to establish campus and academic centres at any place within or outside India:

Provided that no campus or academic centre shall be established outside India without prior approval of the Central Government.

(*5*) Notwithstanding anything contained in section 4, the Board shall not dispose of in any manner, any immovable property of the Institute without prior approval of the Central Government.

(*6*) The Board may, through a specific resolution to this effect, delegate any of its powers and duties to the President, Director, any officer or any authority of the Institute subject to reserving the right to review the action that may be taken under such delegated authority.

11. Institute to be open to all races, creeds and classes.—(*1*) The Institute shall be open to persons of either sex and of whatever race, creed, caste or class, and no test or condition shall be imposed as to religious belief or profession in admitting students, appointing teachers or employees or in any other connection whatsoever.

(*2*) No bequest, donation or transfer of any property shall be accepted by the Institute which in the opinion of the Board involves conditions or obligations opposed to the spirit and object of this section.

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12. Teaching at the Institute.—All teaching and other academic activities at the Institute shall be conducted by or in the name of the Institute in accordance with the Statutes and the Ordinances made in this behalf.

13. Visitor.—(*1*) The President of India shall be the Visitor of the Institute.

(*2*) The Visitor may appoint one or more persons to review the work and progress of the Institute and to hold inquiries into the affairs thereof and to report thereon in such manner as the Visitor may direct.

(*3*) Upon receipt of any such report, the Visitor may take such action and issue such directions as he considers necessary in respect of any of the matters dealt with in the report and the Institute shall be bound to comply with such directions.

14. Authorities of Institute.—The following shall be the authorities of the Institute, namely:—

(*a*) the General Council;

(*b*) the Board of Governors;

(*c*) the Senate; and

(*d*) such other authorities as may be declared by the Statutes to be the authorities of the Institute.

15. Establishment of General Council.—(*1*) With effect from such date as the Central Government may, by notification in the Official Gazette, appoint, there shall be established, for the purposes of this Act, a body to be known as the General Council.

(*2*) The General Council shall consist of the following members, namely:—

(*a*) the Secretary, Ministry of Petroleum and Natural Gas in the Central Government, *ex officio*, who shall be the Chairperson;

(*b*) the Chairman, Indian Oil Corporation Limited, *ex officio*;

(*c*) the Chairman and Managing Director, Hindustan Petroleum Corporation Limited, *ex officio;*

(*d*) the Chairman and Managing Director, Bharat Petroleum Corporation Limited, *ex officio*;

(*e*) the Chairman and Managing Director, Oil and Natural Gas Corporation, *ex officio*;

(*f*) the Chairman and Managing Director, Gas Authority of India Limited, *ex officio*;

(*g*) the Chairman and Managing Director, Oil India Limited, *ex officio*;

(*h*) the Director General of Hydrocarbons, *ex officio*;

(*i*) the Principal Advisor (Energy), Planning Commission, *ex officio*;

(*j*) the Executive Director, Oil Industry Safety Directorate, *ex officio*;

(*k*) the Director, Indian Institute of Technology, Kanpur, *ex officio*;

(*l*) the Director, University Institute of Chemical Technology, Mumbai University, *ex officio*;

(*m*) the Secretary, Oil Industry Development Board, *ex officio*;

(*n*) the President of the Board, *ex officio*;

(*o*) the Director of the Institute, *ex officio*; and

(*p*) persons, not less than two but not exceeding four, representing the private entities in the field of petroleum sector operating in the country, to be nominated by the Chairperson.

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(*3*) The Registrar of the Institute shall be the *ex officio* Secretary of the General Council.

(*4*) The Chairperson shall have the power to invite any person who is not a member of the General Council to attend its meeting but such invitee shall not be entitled to vote.

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16. Powers and functions of General Council.—Subject to the provisions of this Act, the General Council shall have the following powers and functions, namely:—

(*a*) review from time to time the broad policies and programmes of the institute and to suggest measures for the improvement and development thereof;

(*b*) consider the annual statement of accounts including a balance-sheet together with the audit report thereto and the observations of the Board of Governors thereon and to suggest improvements in fiscal management of the Institute;

(*c*) review and evaluate overall quality and effectiveness of the Institute and to advise measures for improvement of performance and for confidence-building between the Institute and its stakeholders;

(*d*) provide credibility, aura, connectivity and contacts for the Institute especially with regard to student placement and resource mobilisation; and

(*e*) advise the Institute and its Board in respect of the advanced areas of technology in the field of petroleum sector covering the entire hydrocarbon value chain as well as in respect of any other matter that may be referred to it for advice by the Board.

17. Senate.—The Senate of the Institute shall be the principal academic body and its composition shall be such as may be provided by the Statutes.

18. Functions of Senate.—Subject to the provisions of this Act, the Statutes and the Ordinances, the Senate shall have the control and general regulation, and be responsible for the maintenance of standards of instruction, education and examination in the Institute and shall exercise such other powers and perform such other duties as may be conferred or imposed upon it by the Statutes.

19. President of Board.—(*1*) The President shall ordinarily preside at the meetings of the Board and at the Convocations of the Institute.

(*2*) It shall be the duty of the President to ensure that the decisions taken by the Board are implemented.

(*3*) The President shall exercise such other powers and perform such other duties as may be assigned to him by this Act or the Statutes.

20. Director.—(*1*) The Director of the Institute shall be appointed by the Central Government in such manner and on such terms and conditions as may be provided by the Statutes:

Provided that the first Director shall be appointed by the Central Government on such terms and conditions as it deems fit, for a period not exceeding six months from the date the first Statutes comes into force.

(*2*) The Director shall be the principal academic and executive officer of the Institute and shall be responsible for the proper administration and academic performance of the Institute and for imparting of instruction and maintenance of discipline therein.

(*3*) The Director shall submit annual reports and accounts to the Board.

(*4*) The Director shall exercise such other powers and perform such other duties as may be assigned to him by this Act, the Statutes or the Ordinances.

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21. Registrar.—(*1*) The Registrar of the Institute shall be appointed in such manner and on such terms and conditions as may be provided by the Statutes and shall be the custodian of records, the common seal, the funds of the Institute and such other property of the Institute as the Board shall commit to his charge.

(*2*) The Registrar shall act as the Secretary of the General Council, the Board, the Senate and such committees as may be provided by the Statutes.

(*3*) The Registrar shall be responsible to the Director for the proper discharge of his functions.

(*4*) The Registrar shall exercise such other powers and perform such other duties as may be assigned to him by this Act, the Statutes or by the Director.

22. Powers and duties of other authorities and officers.—The powers and duties of authorities and officers, other than those hereinbefore mentioned, shall be determined by the Statutes.

23. Grants by Central Government.—For the purpose of enabling the institute to discharge its functions efficiently under this Act, the Central Government may, after due appropriation made by Parliament by law in this behalf, pay to the institute in each financial year such sums of money and in such manner as it may think fit.

24. Fund of Institute.—(*1*) The Institute shall maintain a fund to which shall be credited—

(*a*) all moneys provided by the Central Government;

(*b*) all fees and other charges;

(*c*) all moneys received by the Institute by way of grants, gifts, donations, benefactions, bequests or transfers; and

(*d*) all moneys received by the Institute in any other manner or from any other source.

(*2*) All moneys credited to the fund shall be deposited in such banks or invested in such manner as may be decided by the Board.

(*3*) The fund shall be applied towards meeting the expenses of the Institute including expenses incurred in the exercise of its powers and discharge of its duties under this Act.

25. Setting up of endowment fund.—Notwithstanding anything contained in section 24, the Institute may,—

(*a*) set up an endowment fund and any other fund for a specified purpose; and

(*b*) transfer money from its fund to the endowment fund or any other fund.

26. Accounts and audit.—(*1*) The Institute shall maintain proper accounts and other relevant records and prepare an annual statement of accounts, including the balance-sheet, in such form as may be prescribed by the Central Government in consultation with the Comptroller and Auditor-General of India.

(*2*) The accounts of the Institute shall be audited by the Comptroller and Auditor-General of India and any expenditure incurred by him in Connection with such audit shall be payable by the Institute to the Comptroller and Auditor-General of India.

(*3*) The Comptroller and Auditor-General of India and any person appointed by him in connection with the audit of the accounts of the Institute shall have the same rights, privileges and authority in connection with such audit as the Comptroller and Auditor-General of India has in connection with the audit of the Government accounts, and, in particular, shall have the right to demand the production of books, accounts, connected vouchers and other documents and papers and to inspect the offices of the Institute.

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(*4*) The accounts of the Institute as certified by the Comptroller and Auditor-General of India or any other person appointed by him in this behalf together with the audit report thereon shall be forwarded annually to the Central Government and that Government shall cause the same to be laid before each House of Parliament.

27. Pension and provident fund.—(*1*) The Institute shall constitute for the benefit of its employees, including the Director, such pension, insurance and provident fund scheme as it deems fit, in such manner and subject to such conditions as may be provided by the Statutes.

(*2*) Where any such provident fund has been so constituted, the Central Government may declare that the provisions of the Provident Funds Act, 1925 (19 of 1925) shall apply to such fund as if it were a Government provident fund.

28. Appointments.—All appointments of the staff of the Institute, except that of the Director, shall be made in accordance with the procedure laid down in the Statutes,—

(*a*) by the Board, if the appointment is made on the academic staff in the post of Assistant Professor or above or if the appointment is made on the non-academic staff in any cadre, the maximum of the pay-scale for which is the same or higher than that of Assistant Professor; and

(*b*) by the Director, in any other case.

29. Statutes.—Subject to the provisions of this Act, the Statutes may provide for all or any of the following matters, namely:—

(*a*) the formation of departments of teaching and other academic units;

(*b*) the institution of fellowships, scholarships, exhibitions, medals and prizes;

(*c*) the classification of posts, term of office, method of appointment, powers and duties and other terms and conditions of service of the officers of the Institute including the President, the Director, the Registrar, and such other officers as may be declared as officers of the Institute by the Statutes;

(*d*) the classification, the method of appointment and the determination of the terms and conditions of service of officers, teachers and other staff of the Institute;

(*e*) the reservation of posts for the Scheduled Castes, the Scheduled Tribes and other categories of persons as may be determined by the Central Government;

(*f*) the constitution of pension, insurance and provident funds for the benefit of the officers, teachers and other staff of the Institute;

(*g*) the constitution, powers and duties of the other authorities of the Institute referred in clause (*d*) of section 14;

(*h*) the delegation of power;

(*i*) the code of conduct, disciplinary actions thereto for misconduct including removal from service of employees on account of misconduct and the procedure for appeal against the actions of an officer or authority of the Institute;

(*j*) the conferment of honorary degrees;

(*k*) the establishment and maintenance of halls, residences and hostels;

(*l*) the authentication of the orders and decisions of the Board; and

(*m*) any other matter which by this Act is to be, or may be, provided by the Statutes.

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30. Statutes how made.—(*1*) The first Statutes of the Institute shall be framed by the Central Government and a copy of the same shall be laid, as soon as may be after it is made, before each House of Parliament.

(*2*) The Board may, from time to time, make new or additional Statutes or may amend or repeal the Statutes in the manner hereafter in this section provided.

(*3*) A new Statute or addition to the Statutes or any amendment or repeal of a Statute shall require the previous approval of the General Council who may assent thereto or withhold assent or remit it to the Board for consideration

(*4*) A new Statute or a Statute amending or repealing an existing Statute shall have no validity unless it has been assented to by the General Council.

31. Ordinances.—Subject to the provisions of this Act and the Statutes, the Ordinances may provide for all or any of the following matters, namely:—

(*a*) the admission of the students to the Institute;

(*b*) the reservation for the Scheduled Castes, the Scheduled Tribes and other categories of persons;

(*c*) the courses of study to be laid down for all degrees, diplomas and certificates of the Institute;

(*d*) the conditions under which students shall be admitted to the degree, diploma and certificate courses and to the examinations of the Institute and the eligibility conditions for awarding the same;

(*e*) the conditions of award of the fellowships, scholarships, exhibitions, medals and prizes;

(*f*) the conditions and manner of appointment and duties of examining bodies, examiners and moderators;

(*g*) the conduct of examinations;

(*h*) the maintenance of discipline among the students of the institute;

(*i*) the fees to be charged for courses of study at the Institute and for admission to the examinations;

(*j*) the conditions of residence of students of the Institute and the levying of the fees for residence in the halls and hostels and of other charges; and

(*k*) any other matter which by this Act or the Statutes is to be, or may be, provided for by the Ordinances.

32. Ordinances how made.—(*1*) Save as otherwise provided in this section, Ordinances shall be made by the Senate.

(*2*) All Ordinances made by the Senate shall have effect from such date as it may direct, but every Ordinance so made shall be submitted, as soon as may be, to the Board and shall be considered by the Board at its next succeeding meeting.

(*3*) The Board shall have power by resolution to modify or cancel any such Ordinance and such Ordinance shall from the date of such resolution stand modified accordingly or cancelled, as the case may be.

33. Conduct of business by authorities of Institute.—The authorities of the Institute may have their own rules of procedure, consistent with the provisions of this Act, the Statutes and the Ordinances for the conduct of their own business and that of the committees, if any, appointed by them and not provided for by this Act, the Statutes or the Ordinances.

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34. Tribunal of Arbitration.—(*1*) Any dispute arising out of a contract between the Institute and any of its employees shall, at the request of the employee concerned or at the instance of the Institute, be referred to a Tribunal of Arbitration consisting of one member appointed by the Institute, one member nominated by the employee, and an umpire appointed by the Visitor.

(*2*) The decision of the Tribunal of Arbitration shall be final.

(*3*) No suit or proceeding shall lie in any court in respect of any matter which is required by sub-section (*1*) to be referred to the Tribunal of Arbitration.

(*4*) The Tribunal of Arbitration shall have power to regulate its own procedure.

(*5*) Nothing in any law for the time being in force relating to arbitration shall apply to arbitrations under this section.

CHAPTER III

MISCELLANEOUS

35. Acts and proceedings not to be invalidated by vacancies.—No act of the Institute or the General Council or Board or Senate or any other body set up under this Act or the Statutes, shall be invalid merely by reasons of—

(*a*) any vacancy in, or defect in the constitution thereof, or

(*b*) any defect in the election, nomination or appointment of a person acting as a member thereof, or

(*c*) any irregularity in its procedure not affecting the merits of the case.

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36. Grant of degrees, etc., by Institute.—Notwithstanding anything contained in the University Grants Commission Act, 1956 (3 of 1956) or in any other law for the time being in force, the Institute shall have power to grant degrees and other academic distinctions and titles under this Act.

37. Sponsored schemes.—Notwithstanding anything in this Act, whenever the Institute receives funds from any Government, the University Grants Commission or any other agency including industry sponsoring a research scheme, a consultancy assignment, a teaching programme or a chaired professorship or a scholarship, to be executed or endowed at the Institute,—

(*a*) the amount received shall be kept by the Institute separately from the fund of the Institute and utilised only for the purpose of the scheme; and

(*b*) the staff required to execute the same shall be recruited in accordance with the terms and conditions stipulated by the sponsoring organisation:

Provided that any money remaining unutilised under clause (*a*) shall be transferred to the endowment fund created under section 25.

38. Power to remove difficulties.—(*1*) If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order published in the Official Gazette, make such provisions or give such directions not inconsistent with the provisions of this Act, as appears to it to be necessary or expedient for removing the difficulty:

Provided that no such order shall be made after the expiry of two years from the appointed day.

(*2*) Every order made under this section shall be laid, as soon as may be after it is made, before each House of Parliament.

39. Transitional provisions.—Notwithstanding anything contained in this Act,—

(*a*) the Board of Governors of the Society functioning as such immediately before the commencement of this Act shall continue to so function until a new Board is constituted for the Institute under this Act, but on the constitution of a new Board under this Act, the members of the Board holding office before such constitution shall cease to hold office; and

(*b*) until the first Statutes and the Ordinances are made under this Act, the Statutes and the Ordinances of the Rajiv Gandhi Institute of Petroleum Technology Society, or notification as in force, immediately before the commencement of this Act, shall continue to apply to the Institute in so far as they are not inconsistent with the provisions of this Act.

40. Statutes, Ordinances and notifications to be published in the Official Gazette and to be laid before Parliament.—(*1*) Every Statute and every Ordinance made or notification issued under this Act shall be published in the Official Gazette.

(*2*) Every Statute and every Ordinance made or notification issued under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the Statute, Ordinance or notification or both Houses agree that the Statute, Ordinance or notification should not be made or issued, the Statute, Ordinance or notification shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that Statute, Ordinance or notification.

(*3*) The power to make the Statutes, Ordinances or notification shall include the power to give retrospective effect from a date not earlier than the date of commencement of this Act, to the Statutes, Ordinances, notifications or any of them but no retrospective effect shall be given to any Statute, Ordinance or notification so as to prejudicially affect the interests of any person to whom such Statute, Ordinance or notification may be applicable.

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